

25SMCV06527 25SMCV06527

County: los-angeles

Division: Civil Law and Motion

Department: N

Hearing date: 2026-09-14

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SM%20%2CN%2C09%2F14%2F2026

Source SHA-256: 765b1874cb16f490d27fdc2638bf5667e01ebc28096c893c8b32fb024253ad36

Case Number: 25SMCV06527 Hearing Date: September 14, 2026 Dept: N

TENTATIVE RULING

Defendant High Rise Financial LLC's Demurrer to Verified Complaint Filed by Plaintiffs Debra L. Hodges and Eve Perez is OVERRULED.

Defendant High Rise Financial LLC shall prepare, serve, and submit an answer as per statute.

Plaintiffs Debra L. Hodges and Eve Perez to give notice.

REASONING

"[A] demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967), but the Court does not "assume the truth of contentions, deductions, or conclusions of fact or law" (Moore v. Regents of University of California (1990) 51 Cal.3d 120, 125).

Exclusive Concurrent Jurisdiction

The doctrine of exclusive concurrent jurisdiction does not apply across sovereigns. The doctrine governs "when two courts of the same sovereignty have concurrent jurisdiction." and "was never meant to apply where the two courts involved are not courts of the same sovereignty." (Advanced Bionics Corp. v. Medtronic, Inc. (2002) 29 Cal.4th 697, 707.)

Kentucky and Tennessee courts are not courts of the same sovereignty as this Court, so the first-filed status of those actions does not compel abatement here. Defendant cites *People ex rel. Garamendi v. American Autoplan* (1993) 20 Cal.App.4th 760 and *Plant Insulation Co. v. Fibreboard Corp.* (1990) 224 Cal.App.3d 781 in support of its argument that the exclusive concurrent jurisdiction doctrine requires the Court to stay the California action. However, these cases are distinguishable because they address concurrent jurisdiction between California courts.

Defendant's demurrer on the grounds of the doctrine of exclusive concurrent jurisdiction is overruled.

Statutory Plea in Abatement

The party against whom a complaint has been filed may object by demurrer to the pleading on the grounds that “[t]here is another action pending between the same parties on the same cause of action.” (Code Civ. Proc., § 430.10, subd. (c).) “[A]batement is required only where the multiple actions are pending in courts of the same state.” (Leadford v. Leadford (1992) 6 Cal.App.4th 571, 574.)

Whether to stay the later-filed California action is discretionary rather than mandatory, and the request must be raised by motion, not demurrer. (Leadford, *supra*, 6 Cal.App.4th at p. 574.) A demurrer on the ground that another action is pending is appropriate only where the other action is pending in this state. (*Id.*, p. 575.)

Here, as discussed above, the competing actions are pending in Tennessee and Kentucky, not California. Therefore, a demurrer is not the appropriate vehicle for a statutory plea in abatement.

Defendant’s demurrer on the grounds of a statutory plea in abatement is overruled.

Court’s Inherent Equitable Authority to Stay this Action

In the alternative, Defendant asks the Court to exercise its inherent authority to stay. This request cannot be resolved on demurrer.

A discretionary ruling on whether to stay “must take into consideration matters outside the pleadings, such as the seriousness of the threat of multiple and vexatious litigation, the convenience of the parties, the status of the foreign action, and the competing interests of the two forums.” (Leadford, *supra*, 6 Cal. App. 4th at p. 575.) Matters outside the pleadings are matters “beyond proper consideration on demurrer.” (*Ibid.*) The proper vehicle is a noticed motion. In fact, Defendant has a separately noticed application for an order staying the action, scheduled the same day as the hearing for this motion.

Defendant’s demurrer on these grounds is therefore overruled.

Conclusion

Defendant High Rise Financial LLC’s Demurrer to Verified Complaint Filed by Plaintiffs Debra L. Hodges and Eve Perez is **OVERRULED**. Defendant High Rise Financial LLC shall prepare, serve, and submit an answer as per statute.